# Research Prompt — Clearly Established Law for Qualified Immunity Opposition

## Context

I am preparing opposition briefing for a potential qualified immunity defense in a §1983 action filed in the Northern District of California (Ninth Circuit). The claim is an individual-capacity damages claim against the CEO of a for-profit private company that operates sex offender treatment programs under contract with the California Department of Corrections and Rehabilitation (CDCR).

The core constitutional violation alleged is a procedural due process claim: the defendant personally approved and maintained a blanket corporate policy under which no parolee enrolled in the company's CDCR-contracted sex offender management program was ever determined to have completed treatment prior to discharge from parole. The policy applied categorically — without individualized clinical assessment of any client's progress, risk level, or treatment needs — to extend what was functionally a condition of supervised release (mandatory treatment participation) for the maximum duration of each client's parole term. The company's own responses to requests for admission in a related state action confirmed that it never once recommended treatment completion for the plaintiff across seven consecutive Clinical Treatment Meetings, and refused to identify any client who had ever completed treatment.

The complaint also alleges that the company's internal manual simultaneously (a) states the company is "prohibited from discharging a client from treatment for any reason," and (b) describes a six-step graduation pathway that clinicians are "not permitted to provide directly to clients" — creating what the complaint characterizes as an illusory completion pathway designed to maintain the appearance of an achievable endpoint while ensuring indefinite retention.

## The Specific Research Task

Qualified immunity requires the plaintiff to show that the constitutional right at issue was "clearly established" at the time of the violation. Under Ashcroft v. al-Kidd, 563 U.S. 731 (2011), existing precedent must place the constitutional question "beyond debate." Under City of Escondido v. Emmons, 139 S. Ct. 500 (2019), the right must be defined with specificity, not at a high level of generality.

I already have strong evidence of the defendant's subjective knowledge that the policy was unlawful — a prior state court order (In re Dwyer) in which the company's own Executive Director of Clinical Training testified under oath about the blanket policy and the court condemned it, after which the defendant continued the policy for eighteen more months. That evidence serves the knowledge/deliberate indifference elements of the §1983 claim and supports punitive damages. It does not, however, serve the clearly-established-law prong of QI, because it is an unpublished, non-precedential trial court order — not the kind of controlling authority QI doctrine requires.

**I need you to identify Ninth Circuit and Supreme Court authority establishing that due process requires individualized assessment before imposing, extending, or continuing significant restrictions on liberty — specifically in contexts analogous to continued mandatory treatment participation or continued conditions of supervised release.**

## What I'm Looking For

The authority needs to operate at the right level of specificity under al-Kidd and Emmons. I am not looking for the abstract proposition that "due process requires individualized determinations" — that is too general. I am looking for authority as close as possible to this specific proposition:

**A blanket policy that categorically prevents or indefinitely delays completion of a condition of supervised release — without case-by-case assessment of the individual's progress, risk, or treatment needs — violates procedural due process.**

Relevant doctrinal lines to investigate include but are not limited to:

1. **Foucha v. Louisiana, 504 U.S. 71 (1992)** and its progeny — the principle that continued confinement or liberty restrictions require periodic, individualized justification and cannot rest on categorical status alone.
2. **Vitek v. Jones, 445 U.S. 480 (1980)** and related cases — procedural due process requirements before imposing conditions that significantly alter the nature or duration of confinement/supervision.
3. **Morrissey v. Brewer, 408 U.S. 471 (1972)** and progeny — due process protections in the parole/supervised release context specifically.
4. **Ninth Circuit cases applying these principles** to sex offender treatment programs, conditions of supervised release, parole conditions, civil commitment, or analogous mandatory program participation. Cases involving CDCR or California parole conditions are especially valuable.
5. **Any Ninth Circuit or Supreme Court authority addressing whether private**

**contractors performing government functions owe the same due process obligations as state actors** — this is relevant because the defendant here is a private CEO, not a government employee, acting under color of state law via the CDCR contract.

6. **Cases addressing the due process implications of treatment programs designed without achievable completion criteria**, or conditions of supervision that are nominally time-limited but structured to prevent satisfaction.

## What I Need in the Output

For each case identified:

- Full citation
- The specific holding or principle relevant to the clearly-established-law analysis
- The factual context (what kind of liberty restriction, what kind of individualized assessment was required or absent)
- How close the factual analogy is to the scenario here (blanket policy preventing completion of mandatory sex offender treatment during parole)
- Whether it is binding in the Ninth Circuit (Supreme Court, Ninth Circuit en banc, Ninth Circuit panel) or persuasive (other circuits, district courts)
- Any subsequent history that would affect its precedential value

Also identify:

- Whether any Ninth Circuit authority has addressed QI specifically in the context of sex offender treatment program conditions
- Whether there is a "robust consensus of persuasive authority" across circuits (which can substitute for controlling circuit precedent under al-Kidd) on the individualized-assessment requirement in this context
- Any cases that cut against the argument — i.e., cases holding that categorical treatment policies do not implicate due process, or that the clearly-established-law prong was not satisfied on similar facts

## Important Constraints

- Do not rely on unpublished or non-precedential opinions as "clearly established law" — those are useful for context but cannot carry the QI prong. Flag them separately.
- Do not conflate substantive due process (right to refuse treatment, conditions-of-

confinement) with procedural due process (right to individualized determination before imposition of liberty restrictions). Both may be relevant, but they are distinct doctrinal lines and I need to know which line each case falls in.

- The relevant time period for "clearly established" is the period of the defendant's conduct — approximately 2019 through 2025. Authority must have been clearly established by the time the challenged conduct occurred.
- Be precise about what each case actually holds versus dicta. For QI purposes, the holding is what matters.